

STATEMENT IN SUPPORT OF CLAIM FOR REFUND OF OVER-WITHHELD U.S. FEDERAL INCOME TAX

Return-of-Capital Distributions — Tax Year 2024

Beneficial Owner (Claimant): [Full legal name]

U.S. Taxpayer Identification Number (ITIN): [9XX-XX-XXXX]

Foreign Tax ID / Country of Residence: [Korean RRN or Foreign TIN] — Republic of Korea

Withholding Agent / Qualified Intermediary (QI): [Broker / QI name and EIN or QI-EIN]

Security: Roundhill Innovation-100 ODTE Covered Call Strategy ETF (QDTE) — ISIN US77926X3044 / CUSIP 77926X304

Tax Year: 2024

1. Summary of the Claim

The undersigned is a nonresident alien individual and a resident of the Republic of Korea, not engaged in a trade or business within the United States. During the 2024 tax year, the undersigned received distributions from QDTE through the above withholding agent. U.S. federal income tax was withheld under Chapter 3 of the Internal Revenue Code on the full amount of those distributions.

A substantial portion of QDTE's 2024 distributions was, however, a return of capital (a "nondividend distribution"). A return of capital is not a dividend and is not subject to U.S. withholding tax. Tax withheld on that portion was therefore collected in excess of the correct liability. The undersigned requests a refund of that over-withheld amount, including the portion that was not refunded when the withholding agent reclassified the distributions (the "omitted refund amount").

2. The Distributions at Issue

The two August 2024 distributions specifically identified are set out below. The same treatment applies to every 2024 distribution to the extent characterized as return of capital. Roundhill's Section 19(a) notices estimated the distributions to be 100% return of capital; the final and controlling character is reported on the fund's Form 1099-DIV (Box 3, nondividend distributions) and Form 8937 for 2024.

Ex-Date	Pay Date	Distribution / Share (USD)	Estimated Character (19a-1)
Aug 15, 2024	Aug 16, 2024	0.476485	100% Return of Capital
Aug 22, 2024	Aug 26, 2024	0.475843	100% Return of Capital

Source: Roundhill Investments distribution announcements for QDTE (Aug 16 and Aug 23, 2024) and the corresponding Section 19(a)-1 notices.

3. Legal Basis for the Refund

(a) A return of capital is not a dividend. Under IRC § 301(c) and § 316, a distribution is a dividend only to the extent it is paid out of the corporation's earnings and profits. The portion that is not paid out of earnings and profits is not a dividend; under § 301(c)(2) it is applied against and reduces the shareholder's adjusted basis (a return of capital). It is not income to the beneficial owner when received.

(b) Return-of-capital distributions are not subject to Chapter 3 withholding. Sections 1441 and 1442

impose withholding only on fixed or determinable annual or periodical (FDAP) income, including dividends. Treas. Reg. § 1.1441-3(c) limits the amount subject to withholding on a corporate distribution to the portion that constitutes a dividend out of earnings and profits; the nondividend (return-of-capital) portion is **not an amount subject to withholding**. Accordingly, no U.S. withholding tax is due on the return-of-capital portion of the QDTE distributions.

(c) Treaty treatment. Article 12 of the Convention between the United States and the Republic of Korea for the Avoidance of Double Taxation applies to dividends only. Because a return of capital is not a dividend, Article 12 does not make it taxable in the United States. To the extent any portion is characterized as gain under § 301(c)(3), such gain of a nonresident alien not engaged in a U.S. trade or business is not subject to U.S. tax (and, under Article 16, is taxable only in the residence country).

(d) Over-withholding must be refunded. Because tax was withheld on the return-of-capital portion, an over-withholding within the meaning of IRC § 1464 and the regulations occurred. Where the withholding agent or QI has not repaid the beneficial owner through the reimbursement or set-off procedures of Treas. Reg. § 1.1461-2 before filing its Form 1042, the beneficial owner is entitled to claim the over-withheld amount directly from the Internal Revenue Service. IRC §§ 1464, 6402 and Treas. Reg. § 1.1464-1 and § 301.6402-3 authorize the refund. The claim is made on Form 1040-NR, supported by the Form(s) 1042-S reporting the amounts withheld.

4. Computation of the Refund Requested

Over-withheld tax = ROC per share × shares held × withholding rate applied (15% under the U.S.–Korea treaty, or 30% statutory, as actually withheld). Complete each row from your broker statements and Form(s) 1042-S:

Distribution (Pay Date)	Shares Held	ROC / Share	ROC Amount	Tax Over-Withheld
Aug 16, 2024	[]	0.476485	[]	[]
Aug 26, 2024	[]	0.475843	[]	[]
... (all 2024 distributions)	[]	[]	[]	[]
Total refund requested				[]

Omitted refund amount previously not paid on QI reclassification: [USD ____]

Total refund requested: [USD ____]

5. Request

For the reasons stated above, the undersigned respectfully requests that the Internal Revenue Service refund the over-withheld U.S. federal income tax on the return-of-capital portion of the QDTE distributions for 2024 in the total amount shown above, including the omitted portion not refunded upon the withholding agent's reclassification.

6. Supporting Documents (attached)

- Form(s) 1042-S issued by the withholding agent / QI showing the income and U.S. tax withheld for 2024.
- QDTE 2024 Form 1099-DIV (Box 3, nondividend distributions) and/or Form 8937, and the Section 19(a)-1 notices.
- Broker account statements evidencing shares held and distributions received on each pay date.
- Proof of residency in the Republic of Korea and copy of ITIN assignment (or Form W-7 if applying).

Declaration

Under penalties of perjury, I declare that I have examined this statement and the accompanying documents, and to the best of my knowledge and belief they are true, correct, and complete.

Signature: _____  _____ Date: _____ JUL-23, 2026 _____

Printed name: _____  _____

Note: This statement is a template accompanying a refund claim (Form 1040-NR). Figures for the distribution per share are taken from Roundhill's public announcements; the controlling return-of-capital percentage must be taken from QDTE's final 2024 Form 1099-DIV / Form 8937. Confirm all amounts against your own Form 1042-S and broker records, and have the filing reviewed by a qualified U.S. tax adviser before submission.